

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

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Docket No.: 14-16

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**BALTIC AUTO SHIPPING, INC.,**

*Complainant,*

– vs. –

**MICHAEL HITRINOV  
a/k/a MICHAEL KHITRINOV,  
EMPIRE UNITED LINES CO., INC.,**

*Respondents.*

---

**CERTIFICATION OF MARCUS A. NUSSBAUM**

Marcus A. Nussbaum, pursuant to 28 U.S.C. 1746, making the following Certification under penalty of perjury, in lieu of oath or affidavit says:

1. I am an attorney duly admitted to practice law in the States of New York and New Jersey and I represent the complainant in the above captioned matter. As the Commission will surely recall, I also represented complainant Baltic Auto Shipping, Inc. and its President Andrejus Presniakovas in the matter of Empire United Lines Co. Inc. v. Baltic Auto Shipping Inc. et al. (U.S.D.C. – D.N.J Docket No.: 2:15-cv-00355-CCC-MF), brought by respondents. As such, I have personal knowledge of the facts stated herein.

2. I submit this Certification in reply to respondents' instant Petition for Attorneys Fees.

3. During the course of litigation of Empire, *supra*, the Honorable Dennis M. Cavanaugh (Retired) was appointed Special Master to oversee the completion of discovery and

ultimate resolution of the case. At present, Judge Cavanaugh is now in private practice as Counsel at the law offices of McElroy, Deutsch, Mulvaney & Carpenter, LLP with an office located at 570 Broad Street in Newark New Jersey.

4. Specifically, on or about September 3, 2015, Judge Cavanaugh was contacted by the Hon. Magistrate Judge Mark Falk who requested that Judge Cavanaugh serve as a Special Master in the above captioned matter; specifically, for the purposes of overseeing completion of discovery therein including but not limited to the holdings of depositions of the parties, and presiding over settlement negotiations. (A copy of the Court's Order with respect to same is annexed hereto as Appendix "1"). With particular regard to the latter, Judge Cavanaugh personally presided over and engaged in face-to-face settlement negotiations with counsel for plaintiffs and defendants therein, including plaintiff, Michael Hitrinov.

5. On February 25, 2016 and April 21, 2016, the deposition of Hitrinov was held at Judge Cavanaugh's Newark office, which he personally attended for the purpose of supervising same and rendering rulings as needed.

6. [REDACTED]

7. [REDACTED]

8. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

9. Thereafter, Hitrinov by his counsel Jon Werner (“Werner”) insisted that the terms of the settlement be reduced to a formal written “Settlement Agreement” (the “Agreement”). To that end, Hitrinov and his counsel, Werner unilaterally drafted a Settlement Agreement which was sent for Judge Cavanaugh’s personal review prior to their execution by both the parties and their counsel. A true and accurate copy of said Settlement Agreement was previously annexed as Appendix “B” to the confidential version of Complainants’ Reply on Their Motion to Withdraw Appeal and to Discontinue Action (Document # 88 on the Docket) and is incorporated hereto by reference.

10. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] In particular, plaintiff, Hitrinov and his counsel, Werner expressed a clear desire to insulate themselves against a motion for attorneys fees brought against them in the also then pending matter of *Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc. et al.* (Docket No.: 1:15-cv-00557-DLI-RER) in the United States District Court for the Eastern District of New York.

11. [REDACTED]

[REDACTED]

[REDACTED] Hitrinov’s insistence upon this provision was to protect himself against being sued in either this matter, an additional unrelated matter, or any new cause of action which might be instituted against him. Significantly, the latter is memorialized in the transcript of the settlement

conference held thereon, as is Hitrinov's and Werner's insistence that the terms of the agreement be reduced to writing. A true and accurate copy of said transcript is annexed to the Confidential Version of the Appendix to Complainants' Reply on Their Motion to Withdraw Appeal and to Discontinue Action (Document # 88) and is incorporated hereto by reference.

12. Hitrinov and Mr. Werner refused to consummate the settlement unless the terms of the settlement were reduced to a written Agreement which was ultimately drafted by Hitrinov and Werner. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

13. On May 16, 2016, Judge Cavanaugh emailed the counsel for all parties (a copy of which is annexed hereto as Appendix "3"), stating as follows:

Dear Counsel:

It is my understanding from the various emails I have received from the parties that the settlement documents in this matter have not been signed. As I have stated to you, as per our agreement, this matter has been settled and such settlement has been placed on the record and reported as settled to the Court. For some inexplicable reason, the parties still seem to be arguing over matters that in my view do not pertain to the settlement. At best, these are post settlement issues that can be addressed separately. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

14. The Settlement Agreement was executed by Baltic and Mr. Presniakovas on May 24, 2016 and emailed to Judge Cavanaugh and Mr. Werner on the same day.

15. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

16. [REDACTED]

[REDACTED]

[REDACTED] S [REDACTED]

[REDACTED]

[REDACTED] - -this action

by Mr. Werner constitutes an injustice which cannot be allowed to lie.

17. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

18. By way of example, on June 10, 2016, a telephonic status conference was held by the Honorable Magistrate Judge Mark Falk wherein the parties discussed Hitrinov's unusual and unreasonable request that the parties execute multiple language versions (and multiple ink originals) of the Settlement Agreement. On June 14, 2016, Werner emailed the undersigned (a copy of which is annexed hereto as Appendix "4") wherein he stated as follows:

"...as discussed during the telephone conference before Magistrate Judge Falk on June 10, I am still waiting for receipt of the original signed settlement agreement executed by your

clients. I note that you did not object to producing same during the June 10 telephone conference so I would appreciate your response as to when the original will be provided. If I do not hear from you by close of business tomorrow I have been instructed to file a motion to enforce the order to provide the original signed settlement agreement or to set aside the settlement agreement based on your clients' non-cooperation.

As already mentioned previously, the original signed settlement agreement must be provided in order to reasonably ensure that your clients will not dispute having executed the agreement. As you know, you and your clients have previously "lost" original signed documents and you have notarized several documents signed by your clients "in your presence" when you were in Brooklyn and they were in Chicago. My clients will not tolerate any basis for doubt as to the validity of the settlement agreement or your clients' intention to be bound to same."

19. On June 14, 2016, Judge Cavanaugh emailed the undersigned (a copy of which is annexed hereto as Appendix "5"), stating as follows:

"Mr Nussbaum- please supply Mr Werner with the original as contemplated. It is a reasonable request. D Cavanaugh"

20. Subsequent thereto and between June 14, 2016 and June 16, 2016, the parties exchanged further emails on the issue of how many ink originals should be executed, and in what manner, copies of which are annexed hereto as Appendix "6".

21. On June 15, 2016, Werner docketed a letter with the Court addressed to Magistrate Judge Falk, annexed hereto as Appendix "7" wherein he stated as follows:

"Dear Magistrate Judge Falk,

As you know, I represent the plaintiffs in this case and write to very briefly respond to the letter filed today by Mr. Nussbaum (Docket Entry 71) in which he contends that defendants never consented or agreed to provide plaintiffs ***with an ink signed copy of the settlement agreement***. When counsel participated in the telephone conference conducted before Your Honor on June 10, the undersigned explained that this was one of the remaining items to be completed in order for the parties' settlement to be consummated (along with a final payment due on June 20 and execution of a non-binding Russian translation of the settlement agreement to be provided at plaintiffs' expense ***in order to avoid any future claims of confusion about what the parties agreed to when settling this matter***)."  
(Emphasis added).

22. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

23. On August 15, 2016, Complainant filed a Motion to Withdraw Appeal and Discontinue Action ("Motion to Withdraw") and a status report. Complainant argued that the Presiding Officer, per Rule 72 of the Commission's Rules of Practice and Procedure, should dismiss the action. The same day, Respondents submitted a separate status report stating that they would not agree to the joint stipulation to withdraw the appeal. Respondents stated that Complainant had not explained why a joint stipulation was necessary. Also, they could not agree with the language in the stipulation that states: "this matter shall be discontinued with prejudice, and without costs, attorneys' fees or disbursements to either party as against each other."

24. On August 30, 2016, Respondents filed a response in opposition to Complainant's request to discontinue the action. In their response, Respondents consented to Complainant's withdrawal of its Exceptions, but argued that per Commission Rule 72 "only upon a stipulation of the parties" could the matter be discontinued. As they would not consent to dismissal of the proceeding in its entirety, Respondents argued that the initial decision should become the decision of the Commission. Respondents further argued that the award of attorney fees is mandated at this stage of the proceeding.

25. Annexed hereto as Appendix "9" are copies of emails between the Judge Cavanaugh, Mr. Werner, and Mr. Doyle regarding the scheduling of a telephonic conference in

response to the respondents filing of their instant Petition.

The foregoing is true and correct to the best of my knowledge under penalties of perjury under 28

U.S.C. § 1746.

Executed on August 22, 2017

By:   
Marcus A. Nussbaum

# **APPENDIX “1”**

**UNITED STATES DISTRICT COURT  
DISTRICT OF NEW JERSEY**

**EMPIRE UNITED LINES CO., INC.,  
et al.,**

**Plaintiffs,**

**v.**

**BALTIC AUTO SHIPPING, INC., et  
al.,**

**Defendants.**

**Civil Action No. 15-355 (CCC)**

**ORDER APPOINTING  
SPECIAL MASTER**

**This Matter** having come before the Court for numerous case management conferences, including on July 21, 2015 and August 19, 2015;

and the Court having been presented with a large volume of discovery and pretrial related disputes in the early stages of this breach of contract litigation;

and the Court having repeatedly apprised counsel that, given the volume and intensity of the disputes and the Court's demanding calendar, it was considering the appointment of a Special Master to assist with the pretrial process;

and following consideration of the outstanding issues, and Court finding that the appointment of a Special Master pursuant to Federal Rule of Civil Procedure 53 is warranted under the circumstances;

and during the August 19, 2015 conference, Plaintiff's counsel having indicated that a Special Master may be appropriate in this case;

and the Court further concluding that the assistance of a Special Master would be beneficial to the resolution of pretrial disputes in this case;

and for good cause shown;

**IT IS on this 2<sup>nd</sup> day of September, 2015**

**ORDERED** that:

1. The Honorable Dennis M. Cavanaugh (Ret.) is appointed under Rule 53 as special master on an ongoing basis for the purpose of assisting the Court with discovery and pretrial disputes. The Court will identify the specific pending pretrial and/or discovery related disputes which will be referred to the Special Master as the case proceeds.

2. The Special Master shall have the rights, powers, and duties provided in Rule 53 and may adopt such procedures as are not inconsistent with that rule or with this or other Orders of the Court. The Special Master should create a record of proceedings, take testimony or obtain submissions, and impose whatever procedures he deems appropriate to fulfill his duties under this Order.

3. The Special Master will contact the parties to set up an initial conference in the near future.

4. Any appeal of or objections to the findings or conclusions of the Special Master must be filed within the time frame set forth in Local Civil Rule 72.1(c)(1). Any appeals or objections will be addressed to the Honorable Claire C. Cecchi, U.S.D.J.

5. Compensation, in an amount set by the Special Master and subject to approval by the Court, shall be paid to the Special Master on a periodic basis by the parties, together with reimbursement for reasonable expenses that the Special Master incurs. The compensation shall

be split between the parties at this time and be the responsibility of the parties and not the law firms representing them. Final allocation of these amounts shall be subject to taxation as costs at the conclusion of the case at the discretion of the Court.

**6.** The parties shall advise the Court and the Special Master of any apparent, potential, or actual conflict of interest no later than **September 9, 2015**.

**SO ORDERED.**

s/Mark Falk  
**MARK FALK**  
**United States Magistrate Judge**

# **APPENDIX “2”**

**Marcus A. Nussbaum**

---

**From:** Jon Werner <jwerner@lyons-flood.com>  
**Sent:** Thursday, May 5, 2016 4:31 PM  
**To:** 'Marcus Nussbaum'  
**Cc:** 'Dennis M. Cavanaugh'; 'Cristina M. Pedreira'  
**Subject:** RE: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)  
**Attachments:** Mutual General Release and Settlement Agreement.doc

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Regards,

**Jon Werner**

**Lyons & Flood, LLP**

One Exchange Plaza  
55 Broadway, Suite 1501  
New York, NY 10006  
Tel: (212) 594-2400  
Fax: (212) 594-4589  
Mob: (917) 509-2797  
[jwerner@lyons-flood.com](mailto:jwerner@lyons-flood.com)



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**From:** Marcus Nussbaum [<mailto:marcus.nussbaum@gmail.com>]

**Sent:** Monday, May 02, 2016 8:25 PM

**To:** Jon Werner

**Cc:** Dennis M. Cavanaugh; Cristina M. Pedreira

**Subject:** Re: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)

Dear Honorable Judge Cavanaugh,

We are in receipt of Mr. Werner's email of this date, wherein Mr. Werner advises that Your Honor suggested that the dispute regarding the wording of the settlement agreement be resolved via an attorneys' only hearing at Your Honor's office in Newark on Thursday at 10:00 a.m.

Defendants will not at this time engage in a point by point refutation of the issues raised in Mr. Werner's email of April 28, 2016, and will reserve those issues for the conference on Thursday.

We look forward to bringing this matter to a close on Thursday, and we thank Your Honor for your anticipated assistance in accomplishing that goal.

**Regards,**

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: 888-426-4370

Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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# **APPENDIX “3”**

## Marcus A. Nussbaum

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**From:** Cristina M. Pedreira <cpedreira@mdmc-law.com>  
**Sent:** Monday, May 16, 2016 6:19 PM  
**To:** 'Marcus Nussbaum' (marcus.nussbaum@gmail.com); jwerner@lyons-flood.com  
**Cc:** Dennis M. Cavanaugh  
**Subject:** Settlement

**Importance:** High

*Sent on behalf of Judge Cavanaugh:*

Dear Counsel:

It is my understanding from the various emails I have received from the parties that the settlement documents in this matter have not been signed. As I have stated to you, as per our agreement, this matter has been settled and such settlement has been placed on the record and reported as settled to the Court. For some inexplicable reason, the parties still seem to be arguing over matters that in my view do not pertain to the settlement. At best, these are post settlement issues that can be addressed separately.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

### **Cristina M. Pedreira**

Legal Assistant

### **McElroy, Deutsch, Mulvaney & Carpenter, LLP**

1300 Mt. Kemble Avenue, P.O. Box 2075 | Morristown, New Jersey 07962-2075

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# **APPENDIX “4”**

## Marcus A. Nussbaum

---

**Subject:** FW: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)

---

**From:** Jon Werner [mailto:[jwerner@lyons-flood.com](mailto:jwerner@lyons-flood.com)]

**Sent:** Wednesday, June 15, 2016 12:19 AM

**To:** [marcus.nussbaum@gmail.com](mailto:marcus.nussbaum@gmail.com)

**Cc:** 'Dennis M. Cavanaugh'; Cristina M. Pedreira

**Subject:** RE: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)

Mr. Nussbaum,

Further to my email below, and as discussed during the telephone conference before Magistrate Judge Falk on June 10, I am still waiting for receipt of the original signed settlement agreement executed by your clients. I note that you did not object to producing same during the June 10 telephone conference so I would appreciate your response as to when the original will be provided. If I do not hear from you by close of business tomorrow I have been instructed to file a motion to enforce the order to provide the original signed settlement agreement or to set aside the settlement agreement based on your clients' non-cooperation.

As already mentioned previously, the original signed settlement agreement must be provided in order to reasonably ensure that your clients will not dispute having executed the agreement. As you know, you and your clients have previously "lost" original signed documents and you have notarized several documents signed by your clients "in your presence" when you were in Brooklyn and they were in Chicago. My clients will not tolerate any basis for doubt as to the validity of the settlement agreement or your clients' intention to be bound to same.

Regards,

**Jon Werner**

**Lyons & Flood, LLP**

One Exchange Plaza  
55 Broadway, Suite 1501

New York, NY 10006

Tel: (212) 594-2400

Fax: (212) 594-4589

Mob: (917) 509-2797

[jwerner@lyons-flood.com](mailto:jwerner@lyons-flood.com)



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# **APPENDIX “5”**

**Marcus A. Nussbaum**

---

**Subject:** FW: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)  
**Attachments:** image001.png; b20610.png; image01363e.GIF; imagebc4231.GIF; image7758ac.GIF; imagef0f79c.GIF

-----Original Message-----

From: Dennis M. Cavanaugh [mailto:dcavanaugh@mdmc-law.com]

Sent: Wednesday, June 15, 2016 12:30 AM

To: Jon Werner

Cc: marcus.nussbaum@gmail.com; Cristina M. Pedreira

Subject: Re: Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)

Mr Nussbaum- please supply Mr Werner with the original as contemplated. It is a reasonable request. D Cavanaugh

# **APPENDIX “6”**



*Attorneys At Law*

JON WERNER  
E-Mail: [jwerner@lyons-flood.com](mailto:jwerner@lyons-flood.com)

ADMITTED IN NEW YORK,  
NEW JERSEY

LYONS & FLOOD LLP  
ONE EXCHANGE PLAZA  
55 BROADWAY, SUITE 1501  
NEW YORK, NY 10006  
TEL (212) 594-2400  
FAX (212) 594-4589  
[www.lyons-flood.com](http://www.lyons-flood.com)

June 16, 2016

**VIA CM/ECF**

The Honorable Mark Falk  
United States Magistrate Judge  
United States District Court  
District of New Jersey  
50 Walnut Street  
Newark, NJ 07102

Re: *Empire United Lines Co., Inc. et al. v. Baltic Auto Shipping, Inc. et al.*  
U.S.D.C. – D.N.J., 15 Civ. 355 (CCC) (MF)  
Our File No.: 2697002

Dear Magistrate Judge Falk,

I write with respect to the most recent letter filed by Mr. Nussbaum (Docket Entry 74). By virtue of having been filed publicly on the Court's docket this letter discloses in part the terms of the settlement agreement between the parties, including a reference to the settlement amount. This is in direct violation of the confidentiality provision in the settlement agreement. Plaintiffs therefore request that Mr. Nussbaum's letter be sealed or redacted to omit any reference to the payment terms and amount.

Regarding his continued objections to the delivery of an ink signed copy of the settlement agreement to plaintiffs and his proposal to lodge same with the Court, I do not understand why the parties cannot simply execute several copies of the settlement agreement so that each party will retain an original signed settlement agreement for their records. If Mr. Nussbaum insists on having the Court retain an original signed settlement agreement as well then so be it – but that is no basis to refuse to provide plaintiffs with an original signed copy.

Finally, I write in response to Mr. Nussbaum's accusation that the undersigned "blatantly lied to Judge Cavanaugh about his own personal availability to conduct depositions herein...." As an inquiry to Judge Cavanaugh can readily confirm, this accusation is a complete falsehood and I respectfully submit that the fact that Mr. Nussbaum is knowingly made such a false accusation with the intent to slander the undersigned's reputation merits the imposition of sanctions or a finding of contempt against Mr. Nussbaum.

Respectfully yours,

**Lyons & Flood, LLP**

By: Jon Werner

NEW YORK

NEW JERSEY

CONNECTICUT

**VIA EMAIL**

cc: The Honorable Dennis M. Cavanaugh (Ret.)  
*Special Master*  
McElroy, Deutsch, Mulvaney & Carpenter, LLP  
1300 Mount Kemble Avenue  
P.O. Box 2075  
Morristown, NJ 07962-2075

**dcavanaugh@mdmc-law.com**

Marcus Aurelius Nussbaum, Esq.  
*Attorney for Defendants*  
P.O. Box 245599  
Brooklyn, NY 11224

**marcus.nussbaum@gmail.com**

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# MARCUS A. NUSSBAUM, ESQ.

Mail Drop: P.O. Box 245599, Brooklyn, NY 11224

**Tel:** 888-426-4370 | **Fax:** 347-572-0439

**Email:** marcus.nussbaum@gmail.com

**Web:** www.nussbaumlawfirm.com

June 15, 2016

## **Via ECF Electronic Filing**

Magistrate Judge Mark Falk  
United States District Court  
District of New Jersey  
50 Walnut Street  
Newark, NJ 07102

Re: *Empire United Lines Co., Inc. et al. v. Baltic Auto Shipping, Inc. et al.*  
U.S.D.C. – D.N.J., 15 Civ. 355 (CCC) (MF)

Dear Honorable Magistrate Judge Falk,

I am in receipt of correspondence from counsel for the plaintiffs herein, Mr. Werner in purported response to ours of earlier this date. Kindly allow this letter to reply to same.

As of the time of this writing, defendants have deposited in Judge Cavanaugh's escrow account, the sum of \$32,500.00 with the second installment and remaining balance to be deposited via wire transfer on June 20, 2016.

Earlier this date, we received from the Honorable Judge Claire Cecchi, a 60 Day Order of Dismissal reflecting that this case is now "closed".

As set forth in ours of earlier this date, the undersigned is now in receipt of an "ink original" copy of the Settlement Agreement, signed by our client. All that remains is for plaintiffs to execute same, and for the Court to affix a disposition of the said "ink original".

Counsel for the plaintiffs, Mr. Werner avers that "there is no reasonable or rational basis upon which defendants could object to providing plaintiffs with an ink signed copy of the [S]ettlement [A]greement...". It is therefore, *a fortiori*, that neither is there any "reasonable or rational basis" upon which *plaintiffs* could object to *defendants* retaining the "ink-original" Settlement Agreement.

As to the undersigned having allegedly not objected during the recent telephone conference held hereon to providing the ink signed copy of the Settlement Agreement to plaintiffs, the foregoing does not deter from the fact that both parties can reasonably and equally assert a claim to retain possession of the "ink original" at issue. It is for this reason that the *only* equitable resolution would be for the *Court* to retain the "ink original" of this document within the file pertaining to this matter, and for the parties to be provided with copies thereof. Certainly, there is no "reasonable or rational basis" for plaintiffs to object to this equitable resolution which neither advantages nor disadvantages either party.

As to Mr. Werner having seen fit to air "dirty laundry" before Your Honor, we regret the Court having had to visit such baseless and distasteful opprobrium. That said, and to the extent that Mr. Werner *blatantly lied* to Judge Cavanaugh about his own personal availability to conduct depositions herein, in order to be engaged in a separate matter during which Mr. Werner openly solicited a former client of the undersigned and attempted to induce said former client to bring a legal malpractice suit against the undersigned's law office, it is respectfully submitted that Mr. Werner has manifestly

"unclean hands", and not unlike a man who lives in a glass house should not be one to cast stones.

As to Mr. Werner's obsessive compulsion regarding payment of costs to Judge Cavanaugh, succinctly stated this is none of Mr. Werner's business and never was. That said, following the undersigned having *personally requested* a 'final bill' from Judge Cavanaugh for services provided which was only first received on June 8, 2016, certainly defendants shall and will fully satisfy *any* remaining payment obligations *with Judge Cavanaugh directly*, absent any involvement whatsoever by Mr. Werner.

The undersigned will not dignify by response to Mr. Werner's suggestion of a "phony claim" regarding Mr. Hitrinov's immediate breach of the confidentiality portion of the Settlement Agreement, other than to state that identical to the decision to settle this case in the first instance, a 'business decision' was made in light of mounting litigation costs which had *nothing whatsoever* to do with the unimpeachable validity of said claim.

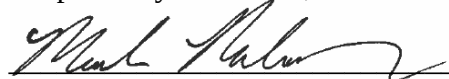
Concerning Mr. Werner's wild-eyed and reckless accusations as to "...plans the defendants may have to contest the legitimacy of the [S]ettlement [A]greement down the road...", not only is the foregoing a complete fallacy, but is further emblematic of the animosity, abusive, unprofessional and unethical personal conduct and behavior of Mr. Werner with which defendants and their counsel have been burdened since the inception of this lawsuit to the very time of this writing, despite this matter having now been settled and the case closed.

Consequently, and in light of the foregoing defendants respectfully request that the Court direct counsel for the parties, as well as Mr. Hitrinov *personally* to appear in Court on a date certain as soon as may be convenient to Your Honor, for the purposes of having Mr. Hitrinov countersign the "ink original" Settlement Agreement, and that the Court retain said "ink original" to be made a part of the Court file pertaining to this matter, with the parties to be provided with copies of same.

We again apologize for further burdening the Court with this final "housekeeping" detail, and particularly for the distasteful references to Mr. Werner's conduct and behavior in this matter, which regrettably required mention herein.

As always, we thank the Court for its continuing patience, courtesy and consideration.

Respectfully submitted,



Marcus A. Nussbaum (MN 9581)

cc: Seth M. Katz, Esq. (Pro hac vice Of-Counsel)

**Via ECF Electronic Filing and Electronic Mail**

Lyons & Flood

Attn: Jon Werner, Esq.

One Exchange Plaza

55 Broadway, Suite 1501

New York, NY 10006

# MARCUS A. NUSSBAUM, ESQ.

Mail Drop: P.O. Box 245599, Brooklyn, NY 11224

Tel: 888-426-4370 | Fax: 347-572-0439

Email: marcus.nussbaum@gmail.com

Web: www.nussbaumlawfirm.com

June 15, 2016

**Via ECF Electronic Filing**

Magistrate Judge Mark Falk  
United States District Court  
District of New Jersey  
50 Walnut Street  
Newark, NJ 07102

Re: *Empire United Lines Co., Inc. et al. v. Baltic Auto Shipping, Inc. et al.*  
U.S.D.C. – D.N.J., 15 Civ. 355 (CCC) (MF)

Dear Honorable Magistrate Judge Falk,

As Your Honor is aware, I represent the defendants in this now settled matter.

I am in receipt of a signed "ink original" copy of the Settlement Agreement executed by my clients herein, and request Your Honor's guidance with regard to disposition of same.

Despite any forthcoming protestations by plaintiffs' counsel to the contrary, *at no time* did defendants *ever* consent to or agree that plaintiffs would retain possession of the original executed Settlement Agreement.

Defendants respectfully request that the Court schedule a date certain for the parties to appear before Your Honor for the purpose of executing (to wit: having the plaintiffs sign) the Agreement; that same be filed with the Court; and that the parties each receive a copy of the fully executed Agreement.

We await the Court's advise at Your Honor's earliest convenience, and thank the Court for its continued patience and courtesy in aiding the parties to finalize this "housekeeping issue" on a now closed matter.

Respectfully submitted,



Marcus A. Nussbaum (MN 9581)

cc: Seth M. Katz, Esq. (Pro hac vice Of-Counsel)

**Via ECF Electronic Filing and Electronic Mail**

Lyons & Flood  
Attn: Jon Werner, Esq.  
One Exchange Plaza  
55 Broadway, Suite 1501  
New York, NY 10006

## Marcus A. Nussbaum

---

**From:** Marcus Nussbaum <marcus.nussbaum@gmail.com>  
**Sent:** Wednesday, June 15, 2016 4:40 PM  
**To:** Jon Werner  
**Subject:** Empire United Lines Co., Inc. v. Baltic Auto Shipping, Inc., 15 Civ. 355 (CCC) (MF)  
**Attachments:** Letter.6.15.16\_FALK.pdf

Dear Mr. Werner,

Attached herein is a letter to Magistrate Judge Falk in the above referenced matter, which was electronically filed via ECF this date.

As to your email of June 14, 2016 we respond only to those portions that require a reply thereto.

As you are well aware, *at no time* did defendants *ever* consent to or agree that plaintiffs would retain possession of the "ink original" executed Settlement Agreement.

While you may be constrained to take "direction" from your client, the defendants are not. That said, and as unequivocally ordered by Magistrate Judge Falk, this matter is now *closed*, and both you and your client need to "get over it".

With all due respect to the Honorable Judge Cavanaugh, his much appreciated and valued services in this matter have now been *completed*. Accordingly, should plaintiffs attempt to further engage Judge Cavanaugh, you are hereby advised and put on notice that *under no circumstances* will defendants share in or absorb *any* further costs or expenses arising out of, or associated with, any further involvement by Judge Cavanaugh in this now closed matter.

With regard to your endless and baseless regurgitation of alleged untoward conduct by the undersigned, defendants will not dignify same by response, other than to note your own demonstrated history of lies, deceit, solicitation of clients, and other unethical practice.

In closing, Mr. Werner, and despite your attempted self-appointment to the contrary, you are not now, *nor have you ever been*, the Financial Director, Enforcement Officer, or most importantly, the Judge in this matter.

Consequently, you and your client will now need to find other avenues and alternative outlets for your insufferable pomposity, delusions of grandeur, and obsessive compulsive tendencies.

Very truly yours,

Marcus A. Nussbaum, Esq.  
P.O. Box 245599  
Brooklyn, NY 11224  
Tel: [888-426-4370](tel:888-426-4370)  
Fax: [347-572-0439](tel:347-572-0439)  
<http://www.nussbaumlawfirm.com/>

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# **APPENDIX “7”**



*Attorneys At Law*

JON WERNER  
E-Mail: [jwerner@lyons-flood.com](mailto:jwerner@lyons-flood.com)

ADMITTED IN NEW YORK,  
NEW JERSEY

LYONS & FLOOD LLP  
ONE EXCHANGE PLAZA  
55 BROADWAY, SUITE 1501  
NEW YORK, NY 10006  
TEL (212) 594-2400  
FAX (212) 594-4589  
[www.lyons-flood.com](http://www.lyons-flood.com)

June 15, 2016

**VIA CM/ECF**

The Honorable Mark Falk  
United States Magistrate Judge  
United States District Court  
District of New Jersey  
50 Walnut Street  
Newark, NJ 07102

Re: *Empire United Lines Co., Inc. et al. v. Baltic Auto Shipping, Inc. et al.*  
U.S.D.C. – D.N.J., 15 Civ. 355 (CCC) (MF)  
Our File No.: 2697002

Dear Magistrate Judge Falk,

As you know, I represent the plaintiffs in this case and write to very briefly respond to the letter filed today by Mr. Nussbaum (Docket Entry 71) in which he contends that defendants never consented or agreed to provide plaintiffs with an ink signed copy of the settlement agreement.

When counsel participated in the telephone conference conducted before Your Honor on June 10, the undersigned explained that this was one of the remaining items to be completed in order for the parties' settlement to be consummated (along with a final payment due on June 20 and execution of a non-binding Russian translation of the settlement agreement to be provided at plaintiffs' expense in order to avoid any future claims of confusion about what the parties agreed to when settling this matter).

During that telephone conference Mr. Nussbaum objected to his clients' execution of a Russian language translation of the settlement agreement but voiced no objection to providing the ink signed copy of the settlement agreement. Moreover, during the telephone conference Your Honor indicated that any remaining issues regarding finalization of the settlement between the parties would be resolved by Judge Cavanaugh, who has been appointed pursuant to Federal Rule of Civil Procedure 53 to serve as a Special Master in this matter with costs to be split equally between the parties (see Docket Entry 62).

Yesterday Judge Cavanaugh directed Mr. Nussbaum to supply the undersigned with the original ink signed copy of the settlement agreement as contemplated on the basis that it was a reasonable request. See copy of Judge Cavanaugh's email order attached. Instead of complying with this order, Mr. Nussbaum disregarded this Court's delegation of authority to Judge Cavanaugh, filed a letter directed to Your Honor, and sent the undersigned the attached email in

NEW YORK

NEW JERSEY

CONNECTICUT

which he advised that defendants took the view that Judge Cavanaugh's authority in this matter was completed, and that defendants were refusing to share in the costs or expenses relating to Judge Cavanaugh's involvement in this matter. (As the undersigned had mentioned during the June 10 telephone conference the defendants still owe approximately \$5,000.00 to Judge Cavanaugh as their share for the services he provided in this case).

There is no reasonable or rational basis upon which defendants could object to providing plaintiffs with an ink signed copy of the settlement agreement, since as Judge Cavanaugh already ruled, it is a reasonable request. The fact that Mr. Nussbaum is so vigorously resisting this very simple and reasonable request suggests that defendants may not have validly executed the settlement agreement, or at least are planning to contest the validity of their signatures in the future. It should be recalled that this case had its origin in defendants' breach of the 2011 settlement agreement between the parties.

It also needs to be pointed out that the last time that Mr. Nussbaum represented to this Court that he possessed the ink original of a document and the Court compelled him to make that document available for inspection, Mr. Nussbaum failed to do so and subsequently claimed that he had somehow "lost" the ink original. See Docket Entry 53.

In addition to whatever plans the defendants may have to contest the legitimacy of the settlement agreement down the road, this latest maneuver by Mr. Nussbaum appears to be an attempt to enable his clients to avoid their obligation to pay for their share of the costs of the Special Master in this case. This would not be the first time that defendants have sought to avoid their payment obligations in this case. Shortly after the settlement agreement was reached, Mr. Nussbaum concocted a phony claim that the plaintiffs had violated a confidentiality provision in an attempt to avoid defendants' obligation to make the initial payment under the settlement agreement. See attached May 11, 2016 letter from Mr. Nussbaum. After Judge Cavanaugh ordered defendants to make the initial settlement payment as agreed Mr. Nussbaum quickly abandoned this claim.

Plaintiffs' respectfully request that the Court compel defendants to provide the ink signed original copy of the settlement agreement as already ordered by Judge Cavanaugh.

Respectfully yours,

**Lyons & Flood, LLP**



By: Jon Werner

Encls.

**VIA EMAIL**

cc: The Honorable Dennis M. Cavanaugh (Ret.)  
*Special Master*  
McElroy, Deutsch, Mulvaney & Carpenter, LLP  
1300 Mount Kemble Avenue  
P.O. Box 2075  
Morristown, NJ 07962-2075

**dcavanaugh@mdmc-law.com**

Marcus Aurelius Nussbaum, Esq.  
*Attorney for Defendants*  
P.O. Box 245599  
Brooklyn, NY 11224

**marcus.nussbaum@gmail.com**

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# APPENDIX “8”

## Marcus A. Nussbaum

---

**From:** Dennis M. Cavanaugh <dcavanaugh@mdmc-law.com>  
**Sent:** Thursday, August 11, 2016 4:58 PM  
**To:** Jon Werner  
**Cc:** Marcus Nussbaum; Gerry Doyle; secretary@fmc.gov  
**Subject:** Re: FMC Docket No.: 14-16  
**Attachments:** 28e190.png; imageb3e0dc.GIF; imagec216dc.GIF; image9f09e0.GIF; image88f323.GIF

Mr Nussbaum - I agree it is your obligation as agreed upon. Please do so. D Cavanaugh

On Aug 11, 2016, at 7:31 AM, Jon Werner <jwerner@lyons-flood.com<mailto:jwerner@lyons-flood.com>> wrote:

Mr. Nussbaum,

It is your obligation to withdraw the appeal - not to play games with mutually signed stipulations.

If I do not see an indication from you today that you have withdrawn the appeal, then tomorrow I WILL reopen the case in the District of New Jersey.

Regards,

Jon Werner

On Aug 10, 2016 6:09 PM, "Marcus Nussbaum"  
<marcus.nussbaum@gmail.com<mailto:marcus.nussbaum@gmail.com>> wrote:  
Dear Ms. Dickon,

In response to yours of August 2, 2016 please be advised that Complainant's pending appeal in the above referenced matter shall be withdrawn with prejudice upon submission of a formal Stipulation of Withdrawal, which as of the time of this writing has been sent to counsel for Respondents under separate cover.

We thank the Commission for its patience and its many courtesies in this matter.

Regards,

Marcus A. Nussbaum, Esq.  
P.O. Box 245599  
Brooklyn, NY 11224  
Tel: 888-426-4370<tel:888-426-4370>  
Fax: 347-572-0439<tel:347-572-0439>  
<http://www.nussbaumlawfirm.com/>

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On Tue, Aug 2, 2016 at 8:04 AM, Secretary <secretary@fmc.gov<mailto:secretary@fmc.gov>> wrote:  
Dear Mssrs. Nussbaum, Doyle and Werner,

By reply to this email please provide a status update on this proceeding today if possible.

Thank you,  
Rachel

Rachel E. Dickon  
Assistant Secretary  
Federal Maritime Commission  
Ph 202-523-5725<tel:202-523-5725>

From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com<mailto:marcus.nussbaum@gmail.com>]  
Sent: Friday, May 27, 2016 6:07 PM  
To: Secretary <secretary@fmc.gov<mailto:secretary@fmc.gov>>  
Cc: Gerry Doyle <gdoyle@doylelaw.net<mailto:gdoyle@doylelaw.net>>; Jon Werner <jwerner@lyons-flood.com<mailto:jwerner@lyons-flood.com>>  
Subject: Re: FMC Docket No.: 14-16

Dear Ms. Dickon,

Kindly allow this email to serve as a response to yours of this date in the above referenced matter.

As of the time of this writing, Complainants have filed a duly executed copy of a Settlement Agreement regarding a resolution reached in an unrelated matter before the U.S. District Court for the District of New Jersey, and are presently awaiting a countersigned copy by the plaintiffs therein.

Upon receipt of same, we will forthwith file a formal Notice of Withdrawal in the instant case still pending before the Commission.

We the thank the Commission for its patience, courtesy, and consideration.

Regards,

Marcus A. Nussbaum, Esq.  
P.O. Box 245599  
Brooklyn, NY 11224  
Tel: 888-426-4370<tel:888-426-4370>  
Fax: 347-572-0439<tel:347-572-0439>

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On Fri, May 27, 2016 at 11:55 AM, Secretary <[secretary@fmc.gov](mailto:secretary@fmc.gov)<<mailto:secretary@fmc.gov>>> wrote:

Mr. Nussbaum,

In the below April email you anticipated a formal notice of withdrawal would be filed due to settlement of this matter. Can you please provide me an update on the status of this? At this time, the case is still pending before the Commission.

Thank you,  
Rachel Dickon

From: Marcus Nussbaum [<mailto:marcus.nussbaum@gmail.com><<mailto:marcus.nussbaum@gmail.com>>]

Sent: Wednesday, April 27, 2016 2:36 PM

To: Secretary <[secretary@fmc.gov](mailto:secretary@fmc.gov)<<mailto:secretary@fmc.gov>>>

Cc: Judges <[judges@fmc.gov](mailto:judges@fmc.gov)<<mailto:judges@fmc.gov>>>; Dennis M. Cavanaugh <[dcavanaugh@mdmc-law.com](mailto:dcavanaugh@mdmc-law.com)<<mailto:dcavanaugh@mdmc-law.com>>>; Gerry Doyle <[gdoyle@doylelaw.net](mailto:gdoyle@doylelaw.net)<<mailto:gdoyle@doylelaw.net>>>; Jon Werner <[jwerner@lyons-flood.com](mailto:jwerner@lyons-flood.com)<<mailto:jwerner@lyons-flood.com>>>

Subject: FMC Docket No.: 14-16

Dear Secretary of the Federal Maritime Commission:

Please see the attached correspondence regarding the resolution of this matter.

Regards,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: 888-426-4370<<tel:888-426-4370>>

Fax: 347-572-0439<<tel:347-572-0439>>

<http://www.nussbaumlawfirm.com/>

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[McElroy, Deutsch, Mulvaney & Carpenter, LLP]<<http://www.mdmc-law.com>> Dennis M Cavanaugh Counsel McElroy, Deutsch, Mulvaney & Carpenter, LLP [www.mdmc-law.com](http://www.mdmc-law.com)<<http://www.mdmc-law.com>>  
1300 Mount Kemble Avenue  
P.O. Box 2075  
Morristown, New Jersey 07962 [cid:imageb3e0dc.GIF@138b2916.46a99a7d] [dcavanaugh@mdmc-law.com](mailto:dcavanaugh@mdmc-law.com)<<mailto:dcavanaugh@mdmc-law.com>>  
[cid:imagec216dc.GIF@f09e4d7a.4cb89163]Download vCard<<http://www.mdmc-law.com/tasks/sites/mdmc/assets/file/vCard2.cfm?email=dcavanaugh@mdmc-law.com>>  
[cid:image9f09e0.GIF@9baccadf.419f02e6]973-425-8838  
[cid:image88f323.GIF@ec1cac13.4a831c80]973-425-0161

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# **APPENDIX “9”**

## Marcus A. Nussbaum

---

**Subject:** FW: Michael Hitrinov  
**Attachments:** Respondents Petition Regarding Attorney Fees.pdf

**From:** Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]  
**Sent:** Wednesday, August 9, 2017 3:32 AM  
**To:** Dennis M. Cavanaugh  
**Subject:** Re: Michael Hitrinov

Dear Honorable Judge Cavanaugh,

As of the time of this writing, I have not heard back from you regarding my reply to your response to my initial email of August 1, 2017.

I have taken the liberty of attaching a copy of Mr. Hitrinov's Petition by his counsel, Mr. Werner for your review. As you can see, Mr. Werner has *completely ignored* the Baltic matter in its entirety, including having further ignored both the fact that the case was settled, as well as the very existence of the Settlement Agreement [REDACTED] It is difficult if not impossible to comprehend how or in what way this does not constitute the outright perpetration of a fraud upon the FMC to my clients' catastrophic detriment and prejudice, should Mr. Hitrinov and Mr. Werner be permitted to succeed by having their fraudulent Petition granted.

I respectfully implore Your Honor to take such steps as necessary, whether by the execution of a Certification, or through a personal appearance before the Commission to prevent Mr. Hitrinov and Mr. Werner from defrauding the Commission and my client by acting in contravention of the terms of the settlement of the Baltic matter over which Your Honor presided.

I await Your Honor's further advise at your earliest possible convenience. To that end, please be advised that having recently been granted an extension, a response to Mr. Werner's Petition is now due by August 22, 2017.

Very truly yours,

Marcus A. Nussbaum, Esq.  
P.O. Box 245599  
Brooklyn, NY 11224

Tel: 888-426-4370

Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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From: "Dennis M. Cavanaugh" <[dcavanaugh@mdmc-law.com](mailto:dcavanaugh@mdmc-law.com)>

Date: Aug 9, 2017 6:12 AM

Subject: Re: Michael Hitrinov

To: "Marcus Nussbaum" <[marcus.nussbaum@gmail.com](mailto:marcus.nussbaum@gmail.com)>

Cc:

Sorry for delay- I'll give you a call tomorrow. D Cavanaugh

----- Forwarded message -----

From: "Marcus Nussbaum" <[marcus.nussbaum@gmail.com](mailto:marcus.nussbaum@gmail.com)>

Date: Aug 11, 2017 7:49 PM

Subject: Re: Michael Hitrinov

To: "Dennis M. Cavanaugh" <[dcavanaugh@mdmc-law.com](mailto:dcavanaugh@mdmc-law.com)>

Cc: "Cristina M. Pedreira" <[cpedreira@mdmc-law.com](mailto:cpedreira@mdmc-law.com)>

Dear Honorable Judge Cavanaugh,

Per our conversation, kindly advise as to the date and time for a conference call between your Honor, myself, and Mr. Werner, which I understand will take place on Monday afternoon.

I await receipt of the call in information from your office, and further wish to advise you that inasmuch as Mr. Hitrinov's attorney of record at the Federal Maritime Commission is Mr. Gerard Doyle, as well as Mr. Werner, it may be useful to have Mr. Doyle on the phone during the conference.

Thank you for your courtesy and consideration.

Very truly yours,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: [888-426-4370](tel:888-426-4370)

Fax: [347-572-0439](tel:347-572-0439)

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From: "Marcus Nussbaum" <[marcus.nussbaum@gmail.com](mailto:marcus.nussbaum@gmail.com)>  
Date: Aug 13, 2017 9:13 PM  
Subject: Michael Hitrinov  
To: "Gerry Doyle" <[gdoyle@doylelaw.net](mailto:gdoyle@doylelaw.net)>, "Jon Werner" <[jwerner@lyons-flood.com](mailto:jwerner@lyons-flood.com)>  
Cc: "Dennis M. Cavanaugh" <[dcavanaugh@mdmc-law.com](mailto:dcavanaugh@mdmc-law.com)>, "Cristina M. Pedreira" <[cpedreira@mdmc-law.com](mailto:cpedreira@mdmc-law.com)>

Counsel,

Please be advised that there will be a telephonic conference on Monday, August 14, 2017 at 3:00 p.m. with the Honorable Judge Dennis M. Cavanaugh. The topic of discussion will be the attempted perpetration of a fraud upon the Federal Maritime Commission by you and your clients arising out of your filing of a Petition for attorneys fees therein, [REDACTED]  
[REDACTED]

Call in details will be circulated under separate cover. There will be no adjournments of this conference.

Be guided accordingly.

*Regards,*

---

Marcus A. Nussbaum, Esq.  
P.O. Box 245599  
Brooklyn, NY 11224  
Tel: [888-426-4370](tel:888-426-4370)  
Fax: [347-572-0439](tel:347-572-0439)  
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----- Forwarded message -----

From: **Marcus Nussbaum** <marcus.nussbaum@gmail.com>

Date: Tue, Aug 15, 2017 at 5:27 AM

Subject: FMC Docket No. 14-16

To: Jon Werner <jwerner@lyons-flood.com>, Gerry Doyle <gdoyle@doylelaw.net>

Counsel,

Inasmuch as you have failed to participate in the telephonic conference which took place on Monday, August 14, 2017 at 3:00 p.m. before the Honorable Dennis M. Cavanaugh regarding the fraudulent Petition filed by you and your clients before the Federal Maritime Commission, please advise if your client will consent to an extension of time for complainant to file an opposition to your fraudulent Petition, up to and including September 6, 2017.

Said extension will allow you the opportunity to participate in a second conference to be scheduled with Judge Cavanaugh after which you may choose to withdraw your Petition and avoid further burdening the Court and the Commission with this fraudulent application and the legal, ethical, and criminal implications arising therefrom.

It is reasonably expected that you will note your client's consent or objection to the extension of time no later than 1:00 p.m. on August 15, 2017.

***Regards,***

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: [888-426-4370](tel:888-426-4370)

Fax: [347-572-0439](tel:347-572-0439)

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